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Case Number: NAIH-3932-5/2024
Subject: Decision

D E C I S I O N

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) has conducted an official data protection authority procedure (base case) regarding the compliance of the data processing practice of ALDI MAGYARORSZÁG ÉLELMISZER Élelmiszer Kereskedelmi Betéti Társaság (registered office: 2051 Biatorbágy, Mészárosok útja 2., company registration number: 13-06-058506; hereinafter: Obligor) in connection with the purchase of alcoholic beverages, which was established in the summer of 2022 and continued until the finalization of the decision under case number NAIH-3227-3/2023, concerning the protection of natural persons with regard to the processing of personal data and the free movement of such data, as well as the repeal of Directive 95/46/EC, in accordance with Regulation (EU) 2016/679 (hereinafter: General Data Protection Regulation). Based on the ruling of the metropolitan court communicated to the Authority on December 7, 2023, which annulled point 3 of the decision made under case number NAIH-3227-3/2023 and obliged the Authority to initiate a new procedure in this regard under number 105.K.701.548/2023/11 on November 7, 2023, the Authority makes the following decisions in the repeated data protection authority procedure initiated ex officio under case number NAIH-3932/2024:

1. Based on the violations established in point 1 of the Decision and upheld by the Metropolitan Court, taking into account the contents of the Judgment; the Authority obliges the Obligor to pay an administrative fine of

80,000,000 HUF, that is eighty million forints

within 30 days from the finalization of this decision.

2. The Authority, based on Section 61 (2) a) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.), orders ex officio the publication of its final decision with the identification data of the Obligor

a) on the Authority's website, and

b) on the homepage of the Obligor's website, in a clearly visible and easily accessible location, within 30 days from the finalization of the decision, and it must be available there for at least 30 days.

The Obligor must provide written proof of compliance with the obligation set out in point 2 b) within 30 days from the finalization of this decision, along with supporting evidence.

In the event of non-compliance with the obligation set out in point 2 b), the Authority will order the enforcement of the decision.

No procedural costs were incurred in the procedure.

There is no administrative remedy against this decision, but it can be challenged in an administrative lawsuit with a petition addressed to the Metropolitan Court within 30 days from the communication. The petition must be submitted electronically to the Authority¹, which

1 The form NAIH_K01 serves for initiating the administrative lawsuit: NAIH_K01 form (2019.09.16) The

form can be filled out using the general form filling program (ÁNYK program).

Dr. Péterfalvi Attila András

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it is forwarded to the court together with the documents of the case. The request for a hearing must be indicated in the statement of claim. For those who do not enjoy full personal exemption from fees, the court review procedure fee is 30,000 HUF, and the subject of the lawsuit is subject to the right of fee deferral. Legal representation is mandatory in proceedings before the Metropolitan Court.

I N D O K O L Á S

I.

Background, main case

(1)

The Authority received several reports regarding the new data processing practice established by the Obligor in connection with the purchase of alcoholic beverages. The submissions complained of significantly differing data processing practices in various stores. According to the complainants, data processing information was not provided to the affected individuals even upon request, nor did the cashiers have such information, thus the legal basis and duration of data processing regarding the recording of the date of birth were unknown. Based on the information from the complainants, the Obligor recorded the date of birth of the purchaser in stores located in several municipalities when purchasing alcoholic beverages—either based on verbal declaration at the checkout or, according to another complaint, by requiring the presentation of an identity card. According to another complaint, the cashier could not provide information regarding the purpose and legal basis of the data recording, and the regional manager indicated to the store manager that recording the data from the identity card was not necessary if the purchaser's age could be established in another way, and the purchasers were not informed of this fact. One complainant stated that he was visibly over 70 years old, yet he still had to prove his age.

(2)

Based on the above, on August 19, 2022, the Authority initiated an official data protection authority procedure to verify whether the data processing practice established by the Obligor in connection with the purchase of alcoholic beverages complies with the requirements set forth in the General Data Protection Regulation.

(3)

During the procedure, the Authority repeatedly called upon the Obligor to provide statements to clarify the facts; it also conducted on-site inspections without prior notice in two randomly selected stores of the Obligor, in accordance with Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.).

(4)

In the data protection authority procedure initiated ex officio, the Decision dated March 30, 2023, in point 1, the Authority established that the Obligor violated:

- a) Article 5(1)(a) of the General Data Protection Regulation;
- b) Article 5(1)(c) of the General Data Protection Regulation;
- c) Article 6(1) of the General Data Protection Regulation;
- d) Article 12(1) of the General Data Protection Regulation;
- e) Articles 13(1) and (2) of the General Data Protection Regulation;
- f) Articles 32(1) and (4) of the General Data Protection Regulation.

(5)

The violation of the principle of transparency as set forth in Article 5(1)(a) of the General Data Protection Regulation occurred because, in the Obligor's stores (i.e., at the location of data processing), it was not transparent for the affected individuals intending to purchase alcoholic beverages regarding the data processing established by the Obligor; the essential circumstances of it

were not accessible to the affected individuals, as there was no information displayed.

<https://www.naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>

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The data processing information notice, which contains relevant essential information regarding actual data processing; furthermore, the employees of the Obligor were unable to provide information, even verbally, regarding the internet accessibility of the related data processing notice or the essential circumstances of the data processing at the request of the data subjects and the representatives of the Authority [see: paragraph (129) of the reasoning of the Decision].

(6)

It also constituted a violation of the principle of transparency that the actual data processing practices regarding the age verification of individuals intending to purchase alcoholic beverages were significantly different in the Obligor's stores, as well as at the cash registers within individual stores, thus the data processing affecting the data subjects was not transparent to them [see: paragraph (134) of the reasoning of the Decision].

(7)

The Obligor violated the principle of transparency as defined in Article 5(1)(a) of the General Data Protection Regulation in relation to data processing carried out through logging until the date of the order regarding notification under Section 76 of the Ákr. [Order No. NAIH-6989-16/2022] by failing to ensure the transparency of the data processing for the data subjects, as during the period between August 4 and August 11, 2022, it did not provide information to the data subjects regarding the data processing; during the period between August 12 and August 31, 2022, it provided information to the data subjects on its Website (<https://www.aldi.hu/hu/homepage.html>) and during inspections in its stores under Sections 68-69 of the Ákr. that was contrary to reality, regarding the fact that every key press at the cash register (and thus the date of birth of customers in the case of purchasing alcoholic beverages) was logged, and that these log files were retained for 180 days following the recording, and that the data processor engaged by the Obligor also had access to them; finally, that from September 1, 2022, until the date of the order regarding notification under Section 76 of the Ákr., the Obligor did not modify the relevant data processing notice, thereby continuing to fail to inform the data subjects about the aforementioned [see: paragraph (141) of the reasoning of the Decision].

(8)

The failure of the Obligor to take appropriate measures to ensure that its information regarding data processing was made easily accessible to the data subjects in its individual stores violated the "easily accessible" criterion prescribed in Article 12(1) of the General Data Protection Regulation [see: paragraph (148) of the reasoning of the Decision].

(9)

The Obligor violated Articles 13(1) and (2) of the General Data Protection Regulation, considering that the Obligor did not provide the data subjects with the information specified in Articles 13(1) and (2) of the General Data Protection Regulation at the time of acquiring personal data regarding the data processing involved in the procedure [see: paragraph (157) of the reasoning of the Decision].

(10)

Regarding the period from August 4, 2022, to August 31, 2022, the Obligor did not demonstrate a legal basis for data processing under Article 6(1) of the General Data Protection Regulation for the data of those data subjects for whom there could be no "doubt" as defined in Section 16/A(4) of Act CLV of 1997 on Consumer Protection (hereinafter: Fgytv.), and who could be clearly identified as having reached the age of eighteen due to their visibly advanced age. Since the Authority could not identify any legal provision or individual decision applicable to the Obligor regarding this group of individuals that would create a legal obligation for data processing, the Obligor violated Article 6(1) of the General Data Protection Regulation [see: paragraph (165) of the reasoning of the Decision].

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(11) It was also a violation of Article 6(1) of the General Data Protection Regulation that the Obligor incorrectly identified this legal provision and the applicable legal norms as a legal obligation that generally burdens him, extending to all customers, and improperly applied the General Data Protection Regulation and the Act on the Protection of Young People (Fgytv.) by overstepping the applicability scope of the legal obligations applicable to him when entering personal data into the cash register system during the recording in log files, as Section 16/A(4) of the Fgytv. only requires credible proof of age, thus he did not have a proper legal basis for the recording. [see: paragraph (166) of the reasoning of the Decision]

(12) According to Section 16/A(4) of the Fgytv., in case of doubt regarding the purchase of alcoholic beverages, the buyer must be asked to provide credible proof of age (i.e., in cases where it cannot be clearly determined whether the person intending to purchase the alcoholic beverage has reached the age of eighteen or not). However, during the period from August 4, 2022, to August 31, 2022, the Obligor, exceeding the phrase "in case of doubt" as defined in Section 16/A(4) of the Fgytv., generally required, in his own words, the "establishment of a system-wide use," that employees working in the position of store seller check the age of every person intending to purchase an alcoholic beverage. This violated the principle of data minimization set out in Article 5(1)(c) of the General Data Protection Regulation – which must be considered by the data controller in every data processing, regardless of the legal basis – as it processed and recorded in its system irrelevant data for the purposes of data processing concerning customers who have evidently reached the age of eighteen. [see: paragraph (169) of the reasoning of the Decision]

(13) During the sales process of alcoholic beverages, both the viewing of an ID suitable for proving age and the entry, recording, and storage for 180 days in log files of the birth date read from the ID suitable for proving age or the birth date provided by the customer in the cash register system are considered data processing operations according to the definition in Article 4(2) of the General Data Protection Regulation. However, the general mandatory requirement for operations beyond viewing was not necessarily needed for the purpose of the Obligor determining whether the affected individuals have reached the age of eighteen. Thus, the Obligor violated the principle of data minimization set out in Article 5(1)(c) of the General Data Protection Regulation, as there exists a method that is appropriate for achieving the goal but involves fewer data processing operations and is less harmful to the affected individuals, meaning that the processing of personal data was not limited to what was necessary. [see: paragraph (174) of the reasoning of the Decision]

(14) The data security requirements set out in Articles 32(1) and (4) of the General Data Protection Regulation were violated because the Obligor did not establish adequate measures to protect the personal data of the affected individuals in his stores and within individual stores; did not apply the procedures prescribed by the Obligor; and some affected individuals had to communicate their birth dates at the explicit request of cashiers, in a manner audible to others, when purchasing alcoholic beverages. [see: paragraph (181) of the reasoning of the Decision]

(15) Due to the violations established in point 1 of the Decision, the Authority obligated the Obligor in point 2 of the Decision to

a) align his data processing practice for age verification in the purchase of alcoholic beverages with the provisions of the General Data Protection Regulation, as well as with Sections 16/A(1) and (4) of the Fgytv., in such a way that

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a) Only in case of doubt, verify the age of the customers and do not perform data recording at the log file level, and modify the relevant data processing information;

b) Place the valid data processing information prepared in accordance with Article 13 of the General Data Protection Regulation regarding the data processing activities taking place in each of its stores in a clearly visible and easily accessible location for the data subjects.

(16) Based on the violations established in point 1 of the Decision, due to the illegality of the data

processing, the Authority has officially ordered the Obligor to pay a data protection fine of HUF 95,000,000, that is, ninety-five million forints, within 30 days from the finality of the Decision, as stated in point 3 of the Decision.

(17) In point 4 of the Decision, the Authority has officially ordered the publication of the final Decision with the identification data of the Obligor on the Authority's website, as well as on the homepage of the Obligor's website, in a clearly visible and easily accessible location, within 30 days from the finality of the Decision, and it should be available there for at least 30 days.

(18) On April 26, 2023, the Obligor paid the data protection fine of HUF 95,000,000 imposed in point 3 of the Decision to the Authority [see: document NAIH-3227-4/2023].

(19) In a statement received by the Authority on April 28, 2023 (statement NAIH-3227-5/2023), the Obligor stated that it had modified its practice, and the "software element requesting the submission of age has been deleted from the cash register software as of April 14, 2023." The Obligor also informed the Authority in the statement that the data processing information regarding the data processing activities carried out in the stores has been amended and published.

(20) In its lawsuit addressed to the Metropolitan Court, the Obligor (as the plaintiff) requested the annulment of points 1, 3, and 4 of the Decision.

(21) In its judgment (document NAIH-3932-1/2024), the Metropolitan Court annulled point 3 of the Decision and ordered the Authority (as the defendant) to conduct a new procedure in this regard. Beyond this, the Metropolitan Court rejected the lawsuit.

(22) According to paragraph [41] of the Reasoning of the Judgment, "[...] the court found that the defendant's decision regarding the retention of the date of birth in the log file is based on the violations established in point 1 of the operative part, as well as the provision imposing a fine of HUF 95,000,000 on the plaintiff (point 3) is unlawful. Regarding point 3, the decision was annulled by applying Section 89 (1) b) of the Administrative Procedure Code, and the defendant was ordered to conduct a new procedure in this regard. Concerning the data processing carried out with access and input, the plaintiff did not contest the subpoints a) and c)-f) of point 1 of the operative part of the decision, thus the court did not affect the decision in this regard. Furthermore, regarding the legal basis for the violation established in subpoint b) of point 1, as well as the provision ordering the publication of the decision in point 4, the lawsuit was rejected based on Section 88 (1) a) of the Administrative Procedure Code. In light of all this, the annulment of point 1 of the decision was not justified, as the defendant established a violation by evaluating the plaintiff's data processing as a whole, and concerning the data processing carried out with access and input, the court did not address the content of point 1."

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The violation of provisions exists regardless of whether the same findings were not lawful concerning the retention.

(23) According to paragraph [42] of the Judgment Reasoning, "In the repeated procedure, the defendant must make its decision with regard to the fact that the plaintiff did not commit a legal violation concerning the retention of the date of birth in the log file. It must again decide on the legal consequences applicable due to the established violations related to data processing carried out through access and input, noting that in the case of imposing a fine, its amount must be determined considering the narrower scope of the violation; the circumstances related to retention in the log file should not be taken into account during the consideration, and the duration of the violation established in connection with mandatory age verification (access, input) cannot be evaluated as an aggravating circumstance. Therefore, the amount of the fine must be proportionate, disregarding all these circumstances."

(24) In light of the above [see: paragraphs (1) – (23) of the reasoning of this decision] – except for point 3 of the Decision – the rest of the Decision has become final.

II.

Repeated Data Protection Authority Procedure

(25) Based on the Judgment, a repeated data protection authority procedure was initiated on December 7, 2023.

(26) Neither the Authority nor the Obligor submitted a request for review against the Judgment (see: document with case number NAIH-3932-2/2024).

(27) According to Section 62 (3) of the Administrative Procedure Act, facts officially known by the authority and public facts do not need to be proven. In this regard, the documents generated under case number NAIH-3227/2023, as well as the preceding case number NAIH-6989/2022, are considered facts officially known by the Authority.

(28) The Authority notified the Obligor of the repeated data protection authority procedure in its decision sent via Company Gateway under case number NAIH-3932-3/2024; it also informed the Obligor that within the scope defined by the Judgment, the Obligor could make a statement regarding the subject of the repeated data protection authority procedure. The Obligor downloaded the Authority's decision on March 5, 2024.

(29) The Obligor's statement regarding the decision NAIH-3932-3/2024 was received by the Authority on March 11, 2024, via e-Paper (statement with case number NAIH-3932-4/2024). In its statement, the Obligor indicated that, in accordance with the contents of the decision NAIH-3932-3/2024, the Obligor also did not submit a request for review against the Judgment, "keeping in mind the prompt final resolution of the case." Based on the contents of the statement, the Obligor "maintains unchanged those statements made in the administrative and judicial phases of the main case that were considered by the Metropolitan Court in making the Judgment."

(30) In its statement with case number NAIH-3932-4/2024, the Obligor requested that the decision to be made in the present repeated data protection authority procedure be shaped in accordance with the contents of the Judgment Reasoning (see: paragraphs [41] and [42] of the Judgment Reasoning). The Obligor also requested that the Authority "consider that, since the retention of the date of birth in the log file is not considered data processing according to the Judgment, the duration of the unlawful behavior is also a fraction of the originally..."

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"established." The Obligor also requested that the Authority omit the "exact amount specification" of the Obligor's annual transaction number from the reasoning of the decision.

(31) In the course of the present repeated data protection authority procedure, the Authority did not conduct any new evidentiary proceedings beyond what was determined in the Judgment, nor were any new pieces of evidence utilized.

III. Applicable Legal Sources

(32) According to Article 2(1) of the General Data Protection Regulation, the General Data Protection Regulation applies to the data processing in this case.

(33) According to Article 4(1) of the General Data Protection Regulation, personal data means any information relating to an identified or identifiable natural person ("data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.

(34) According to Article 4(2) of the General Data Protection Regulation, processing of personal data means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.

(35) According to Article 4(7) of the General Data Protection Regulation, the data controller is the natural or legal person, public authority, agency, or any other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the data controller or the specific aspects of the designation of the data controller may also be provided for by Union or Member State law.

(36) According to Article 31 of the General Data Protection Regulation, the data controller and the data processor, and, if applicable, the representative of the data controller or the data processor, shall cooperate with the supervisory authority in the performance of their tasks, at the request of the supervisory authority.

(37) According to Articles 58(1) – (2) of the General Data Protection Regulation:

“(1) The supervisory authority shall act with investigative powers:

- a) it shall instruct the data controller and the data processor, and, where applicable, the representative of the data controller or the data processor, to provide it with the information necessary for the performance of its tasks;
- b) it shall conduct investigations in the form of data protection audits;
- c) it shall carry out the review of certifications issued in accordance with Article 42(7);
- d) it shall notify the data controller or the data processor of any alleged infringement of this Regulation;
- e) it shall have access to all personal data and all information necessary for the performance of its tasks from the data controller or the data processor; and
- f) it shall have access, in accordance with Union or Member State procedural law, to any premises of the data controller or the data processor, including any equipment and means used for processing.”

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(2) In exercising its corrective powers, the supervisory authority:

- a) warns the data controller or the data processor that certain planned data processing activities are likely to violate the provisions of this regulation;
- b) reprimands the data controller or the data processor if their data processing activities have violated the provisions of this regulation;
- c) instructs the data controller or the data processor to comply with the request of the data subject regarding the exercise of rights under this regulation;
- d) orders the data controller or the data processor to bring their data processing operations into compliance with the provisions of this regulation - in a specified manner and within a specified time frame, if applicable;
- e) instructs the data controller to inform the data subject about the data protection incident;
- f) temporarily or permanently restricts data processing, including prohibiting data processing;
- g) orders the rectification or deletion of personal data, or the restriction of data processing, in accordance with Articles 16, 17, and 18, and orders the notification of the recipients to whom personal data have been disclosed, in accordance with Article 17(2) and Article 19;
- h) withdraws the certification or instructs the certifying body to withdraw the certification issued in accordance with Articles 42 and 43, or instructs the certifying body not to issue the certification if the conditions for certification are not or are no longer met;
- i) imposes an administrative fine in accordance with Article 83, depending on the circumstances of the case, in addition to or instead of the measures mentioned in this paragraph; and
- j) orders the suspension of data flows to a third country or international organization.”

(38) According to Articles 83(1) – (5) of the General Data Protection Regulation:

“(1) Each supervisory authority ensures that administrative fines imposed under this article for violations mentioned in paragraphs (4), (5), and (6) of this article are effective, proportionate, and dissuasive in each case.

(2) Administrative fines shall be imposed, depending on the circumstances of the case, in addition to or instead of the measures mentioned in Article 58(2)(a) to (h) and (j). In determining whether an

administrative fine is necessary and in determining the amount of the administrative fine, the following shall be duly taken into account in each case:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purposes of the processing in question, as well as the number of data subjects affected by the infringement and the level of damage suffered by them;
- b) the intentional or negligent nature of the infringement;
- c) any measures taken by the data controller or the data processor to mitigate the damage suffered by data subjects;
- d) the degree of responsibility of the data controller or the data processor, taking into account the technical and organizational measures implemented by them pursuant to Articles 25 and 32;
- e) any relevant previous infringements by the data controller or the data processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate any potentially negative effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) how the supervisory authority became aware of the infringement, in particular whether the data controller or the data processor notified the infringement and, if so, with what detail;

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- i) if any of the measures referred to in Article 58(2) have previously been ordered against the data controller or processor in relation to the same subject matter, compliance with those measures;
- j) whether the data controller or processor adhered to the approved codes of conduct under Article 40 or the approved certification mechanisms under Article 42; and
- k) any other aggravating or mitigating factors relevant to the circumstances of the case, such as financial benefits gained or losses avoided as a direct or indirect consequence of the infringement.

(3) If a data controller or processor infringes several provisions of this regulation, whether intentionally or negligently, in relation to the same processing operation or related processing operations, the total amount of the fine shall not exceed the amount specified for the most serious infringement.

(4) Infringement of the following provisions shall be subject to an administrative fine of up to 10,000,000 EUR or, in the case of enterprises, up to 2% of the total annual worldwide turnover of the preceding financial year, whichever is higher:

- a) the obligations specified in Articles 8, 11, 25-39, 42, and 43 for the data controller and the data processor;
- b) the obligations specified in Articles 42 and 43 for the certification body;
- c) the obligations specified in Article 41(4) for the monitoring body;

(5) Infringement of the following provisions shall be subject to an administrative fine of up to 20,000,000 EUR or, in the case of enterprises, up to 4% of the total annual worldwide turnover of the preceding financial year, whichever is higher:

- a) the principles of data processing - including the conditions for consent - in accordance with Articles 5, 6, 7, and 9;
- b) the rights of data subjects in accordance with Articles 12-22;
- c) the transfer of personal data to a recipient in a third country or an international organization in accordance with Articles 44-49;
- d) obligations under national law adopted pursuant to Chapter IX;
- e) failure to comply with an instruction from the supervisory authority under Article 58(2) or a request regarding the temporary or permanent limitation of processing or the suspension of data flows, or failure to provide access in violation of Article 58(1).

(39) According to Section 2(2) of the Infotv., the General Data Protection Regulation shall be applied with the additions specified therein. In relation to processing activities not covered by the scope of Article 2(1) of the General Data Protection Regulation, with regard to Section 2(4) of the Infotv.: "The processing of personal data not falling under the scope of paragraphs (2) and (3) shall be governed by

- a) Article 4, Chapters II–VI, and VIII–IX of the General Data Protection Regulation, as well as
- b) Chapters III–V and VI/A of this law, and points 3, 4, 6, 11, 12, 13, 16, 17, 21, 23-24 of Section 3, paragraph (5) of Section 4, paragraphs (3)–(5), (7), and (8) of Section 5, paragraph (2) of Section 13,

Section 23, Section 25, paragraphs (3), (4), and (6) of Section 25/G, paragraph (2) of Section 25/H, paragraph (2) of Section 25/M, Section 25/N, paragraph (1) of Section 51/A, Sections 52-54, paragraphs (1) and (2) of Section 55, Sections 56-60, and paragraphs (1)-(3) and (6) of Section 60/A, point (a) and (c) of paragraph (1) of Section 61, and paragraphs (2) and (3) of Section 61, and point (b) of paragraph (4).

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In point (6)–(10) and in § 61/A–61/D, as well as in §§ 62–71, in § 72, in § 75 (1)–(5), in § 75/A, and in Annex 1, the provisions specified must be applied.”

(40) According to § 38 (2) – (2a) of the Infotv.:

“(2) The Authority's task is to monitor and promote the enforcement of the right to the protection of personal data, as well as the right to access public interest and publicly available data, and to facilitate the free flow of personal data within the European Union.

(2a) The tasks and powers assigned to the supervisory authority in the General Data Protection Regulation shall be exercised by the Authority concerning entities under the jurisdiction of Hungary in accordance with the provisions set forth in the General Data Protection Regulation and this law.”

(41) According to § 60 (1) of the Infotv., in order to enforce the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject and may also initiate a data protection authority procedure ex officio. The rules of the Ákr. shall apply to the data protection authority procedure with the supplements defined in the Infotv. and the deviations according to the General Data Protection Regulation.

(42) According to § 60/A (1) of the Infotv., the administrative deadline in the data protection authority procedure is one hundred and fifty days, which does not include the time from the call for the provision of data necessary for clarifying the facts until its fulfillment. According to § 103 (3) of the Ákr., in ex officio procedures, only the duration of the suspension of the procedure is not included in the administrative deadline. Furthermore, § 52 of the Ákr. shall apply to the application of procedural deadlines.

(43) According to § 61 (1) of the Infotv.:

“(1) In its decision made in the data protection authority procedure, the Authority may:

- a) apply the legal consequences specified in the General Data Protection Regulation in connection with the data processing operations defined in § 2 (2) and (4), thus, in particular, may order the deletion of unlawfully processed personal data to be executed in a manner determined by it, or may temporarily or permanently restrict data processing in other ways,
- b) in connection with the data processing operations defined in § 2 (3):
 - ba) establish the fact of unlawful processing of personal data,
 - bb) order the correction of inaccurate personal data,
 - bc) order the blocking, deletion, or destruction of unlawfully processed personal data,
 - bd) prohibit the unlawful processing of personal data,
 - be) prohibit the transfer or disclosure of personal data abroad,
 - bf) order the notification of the data subject if the data controller unlawfully omitted or denied it, and
 - bg) impose a fine,
- c) apply the legal consequences specified in Article 41 (5) of the General Data Protection Regulation against the organization conducting the supervisory activity defined in Article 41 (1) of the General Data Protection Regulation.”

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(44) According to Section 61 (2) of the Infotv.:

“(2) The Authority may order the publication of its decision – with the disclosure of the identifying data of the data controller and the data processor – if

- a) the decision affects a wide range of individuals,
- b) it was made in connection with the activities of a public authority, or

c) the severity of the legal violation justifies the publication.”

(45) Based on Section 61 (3) of the Infotv., the application of a warning is excluded in the Authority's procedure if the Authority determines the necessity of imposing a fine based on the provisions regarding its discretion.

(46) According to Section 61 (7) of the Infotv., the execution of the Authority's decision regarding the obligation to perform a specific act, to behave in a certain manner, to tolerate, or to cease, as stated in the decision, is carried out by the Authority. The Authority's final decision, or in the case of administrative litigation, the decision adjudicated by the administrative court with legal force, regarding the unlawful data processing established – unless otherwise provided by the court, the prosecutor, or another authority – cannot be deleted or annulled in the case of criminal proceedings or other administrative or judicial proceedings from the start date of the criminal proceedings until the conclusion of the criminal proceedings with the court's final decision or a non-final ruling that has become final, or until the decision to terminate the proceedings that cannot be challenged further by the prosecutor or the investigative authority is made, and in the case of other administrative or judicial proceedings, from the start date until the final or legally binding conclusion.

(47) According to Section 71 (1) of the Infotv., during the Authority's procedure – to the extent and duration necessary for its conduct – it may handle all personal data, as well as data classified as legally protected secrets and professional secrets, that are related to the procedure or whose handling is necessary for the successful conduct of the procedure.

(48) According to Section 71 (2) of the Infotv., the Authority may use documents, data, or other evidence lawfully obtained during its procedures in other proceedings.

(49) According to Section 5 (1) of the Ákr., the client may make statements or comments at any time during the procedure.

(50) According to Section 6 of the Ákr., all participants in the procedure are obliged to act in good faith and cooperate with the other participants. No one's conduct may aim to deceive the authority or to unjustifiably delay decision-making or execution. The good faith of the client and the other participants in the procedure must be presumed. The burden of proving bad faith lies with the authority.

(51) According to Sections 13 (1) – (2) of the Ákr., if the law does not require the personal participation of the client, they may be represented by their legal representative or a person authorized by them or their legal representative, and the client and their representative may also act together. The actions of the legal representative of a legal entity are considered personal participation.

(52) According to Section 14 of the Ákr., the authorized representative must prove their authority to represent – if it is not included in the registry of dispositions. The authorization must be recorded in a public document or a private document of full evidentiary force, or it must be stated in a protocol. Unless otherwise indicated in the authorization, it extends to the procedure with

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All statements and actions related to it. If the authority's representation rights are terminated due to revocation, termination, or the death of the client or the authorized representative, the termination shall take effect against the authority upon notification to the authority, and against other clients upon communication with them.

(53) According to Section 27 of the Administrative Procedure Act (Ákr.), the authority processes personal identification data necessary for the identification of the client and other participants in the procedure, as well as personal data defined in the law regulating the type of case, and, unless otherwise provided by law, other personal data that is essential for the successful conduct of the procedure. The authority ensures that any protected secrets and other data protected by law (hereinafter collectively referred to as protected data) shall not be made public, shall not come to the knowledge of unauthorized persons, and that the legal protection of such protected data is also ensured in the authority's proceedings. The authority processes those protected data that are related

to its proceedings or whose processing is necessary for the successful conduct of the procedure, in the manner and scope defined by law.

(54) According to Section 33 (1) of the Ákr., the client may inspect the documents generated during the procedure at any stage of the procedure and after its conclusion.

(55) According to Section 33 (4) of the Ákr., during the document inspection, the entitled person may make copies or extracts, or may request a copy for which the authority provides authentication upon request, against a fee determined by government decree.

(56) According to Section 34 of the Ákr., the draft decision cannot be inspected. A document or a part of a document from which a conclusion can be drawn about any protected data or personal data, the conditions for the knowledge of which as defined by law are not met, cannot be disclosed, except if the lack of knowledge of the data—excluding classified data—would prevent the entitled person from exercising their rights provided by this law. The authority shall ensure document inspection upon request—even after the conclusion of the procedure—or shall reject it by order.

(57) According to Section 62 (3) of the Ákr., facts officially known and public knowledge do not need to be proven by the authority.

(58) Based on Sections 77 (1) – (2) of the Ákr., anyone who violates their obligation due to their own fault shall be obliged by the authority to reimburse the additional costs incurred and may be subject to procedural fines. The minimum amount of the procedural fine is ten thousand forints, and the maximum amount—unless otherwise provided by law—is five hundred thousand forints for natural persons and one million forints for legal persons or other organizations.

(59) According to Section 103 (1) of the Ákr., in official proceedings, the provisions of the Ákr. regarding procedures initiated upon request shall be applied with the deviations specified in Chapter VII of the Ákr.

(60) According to Section 104 (1) b) of the Ákr., the authority shall initiate the procedure ex officio within its jurisdiction if ordered to do so by a court.

(61) According to Section 16/A (1) of the Consumer Protection Act (Fgytv.), it is prohibited to sell or serve alcoholic beverages to persons who have not yet reached the age of eighteen, except for medicines that can only be dispensed on medical prescription.

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(62) According to Section 16/A, paragraph (4) of the Fgytv., in order to enforce the restrictions defined in paragraphs (1)–(3), the business or its representative shall, in case of doubt, request the consumer to provide credible proof of age. In the absence of appropriate proof of age, the sale or provision of the product must be refused.

IV. Judgment

(63) In its judgment, the Metropolitan Court annulled point 3 of the Decision based on Section 89, paragraph (1), point b) of Act I of 2017 on Administrative Procedure (hereinafter: Kp.) and ordered the Authority to conduct a new procedure in this regard. Beyond this, the Metropolitan Court rejected the claim.

(64) In paragraph [27] of the Justification of the Judgment, the Metropolitan Court stated that "the court found that after the purchase, the date of birth recorded and retained in the format of the keystroke 'NNHHÉÉÉÉ' due to input at the given cash register was not considered personal data, as it no longer allowed for the identification of the data subject. The date of birth in this form, along with all keystrokes, was retained solely for troubleshooting purposes and not for the identification of the data subject, without any other data that could be linked to the data subject. The numeric sequence of the date of birth recorded by keystroke during retention did not allow for the identification of the buyer as a natural person, but rather enabled the identification of the purchase [...] Consequently, the retention of the date of birth in the log file for 180 days did not constitute data processing."

(65) According to paragraph [42] of the Justification of the Judgment, in the present repeated data protection authority procedure, the Authority must take into account that the Obligor "did not commit a violation regarding the retention of the date of birth in the log file."

(66) In its judgment, the Metropolitan Court further emphasized (see: paragraph [41] of the Justification of the Judgment) that the annulment of point 1 of the Decision was not justified because, in that point, the Authority established a violation by evaluating the Obligor's data processing as a whole; and the violation of the provisions contained in point 1 of the Decision regarding data processing realized through inspection and input exists regardless of the fact that the same findings regarding retention were considered "unlawful" by the Metropolitan Court.

(67) In light of the above [see: paragraphs (63) – (66) of the justification of this decision], the Metropolitan Court decided in its Judgment that – contrary to what was stated in the Decision – "the Obligor did not carry out data processing with the retention of the date of birth in the log file for 180 days."

V. Legal Consequences

V.1. Data Protection Fine

(68) According to paragraph [42] of the Justification of the Judgment, the Authority "must again decide on the legal consequences applicable to the established violations related to data processing realized through inspection and input, stating that in the case of imposing a fine, its amount must be determined considering the narrower scope of the extent of the violation; the circumstances related to retention in the log file should not be taken into account during the assessment, and the Authority cannot evaluate them as aggravating circumstances in relation to the mandatory age verification (inspection, input)."

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the established duration of the infringement. Therefore, the amount of the fine must be proportionately lower, disregarding all these circumstances.

(69) The Authority may impose a data protection fine instead of or in addition to other measures, in accordance with Article 58(2)(i) and Article 83(2) of the General Data Protection Regulation.

(70) In the matter of whether it is justified to impose a data protection fine in the current repeated data protection authority procedure, the Authority acted within its statutory discretion, taking into account point a) of Section 61(1) of the Infotv., Section 75/A of the Infotv., as well as Article 83(2) and Article 58(2) of the General Data Protection Regulation. The Authority considered all circumstances of the case, paying particular attention to the contents of the Judgment, and determined that in the current repeated data protection authority procedure, a warning and a reprimand alone would neither be proportionate nor have a deterrent effect; therefore, the imposition of a fine is necessary, considering the market position of the Obligor, the general and nationwide nature of the practice it introduced, and the significant number of affected individuals. In this case, the protection of personal data—which is the Authority's task—cannot be achieved without the imposition of a data protection fine based on the totality of the circumstances for imposing the fine detailed below. The imposition of the fine serves both specific and general prevention, whereby the decision will be published not only on the Authority's website but also in a prominent and easily accessible location on the homepage of the Obligor's website.

(71) In determining the amount of the fine, the Authority primarily took into account that the Metropolitan Court decided in its Judgment that "the retention of the date of birth in the log file for 180 days did not constitute data processing" (see: paragraph [27] of the Reasoning of the Judgment); the Obligor "did not commit an infringement regarding the retention of the date of birth in the log file" (see: paragraph [42] of the Reasoning of the Judgment). However, the Authority cannot disregard that the additional, fundamental legal infringements established in the Decision still qualify as infringements falling under the higher fine category according to point a) of Article 83(5) of the General Data Protection Regulation, based on which the maximum fine that can be imposed is 20,000,000 EUR, or, in the case of enterprises, an amount not exceeding 4% of the total annual global turnover of the

previous financial year, with the higher of the two amounts to be imposed.

(72) In determining the amount of the fine imposed in the Decision (95,000,000 HUF), the Authority considered the data from 2021, based on which the net revenue from sales of the Obligor in 2021 was 315,282,601,000 HUF. At the same time, the Authority also took into account that in comparison, the Obligor's after-tax profit was 8,504,878,000 HUF in that year [see: paragraph (184) of the reasoning of the Decision].

(73) In the current repeated data protection authority procedure, in determining the fine, the Authority took into account the business year of the Obligor for 2021, considering the period during which the infringements occurred.

(74) Based on the data from 2021, taking into account the amount of 315,282,601,000 HUF, which must be considered by the Authority, the statutory maximum fine in this case is 12,611,304,040 HUF. In comparison, the data protection fine of 80,000,000 HUF mentioned in this decision is 0.025% of the Obligor's net revenue from sales, which is significantly below the maximum fine amount.

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(75) The Authority took the following mitigating circumstances into account when determining the amount of the data protection fine:

- Employees working in the position of store seller employed by the Obligor have, since September 1, 2022, only called upon customers to provide credible proof of their age for the purchase of alcoholic beverages in case of doubt; this is also included in paragraph [39] of the Judgment's Reasoning [General Data Protection Regulation Article 83(2)(a)];
- The infringement affected a narrow range of categories of personal data of the data subjects, as the recording was limited to the birth dates of the customers [General Data Protection Regulation Article 83(2)(g)];
- The Authority assessed that the primary aim of the measures introduced by the Obligor was to protect individuals under the age of eighteen (which was also confirmed in paragraph [35] of the Judgment's Reasoning), to comply as fully as possible with consumer protection legal requirements, and there was no information suggesting that it aimed at obtaining any other unlawful advantage [General Data Protection Regulation Article 83(2)(k)].

(76) The Authority took the following aggravating circumstances into account when determining the amount of the data protection fine – also considering paragraph [42] of the Judgment's Reasoning:

- The Obligor – as acknowledged in paragraph [39] of the Judgment's Reasoning – committed multiple infringements, violating other fundamental provisions as well, therefore the Authority deemed the nature of the infringements to be moderately serious, and such an assessment is not unreasonable based on paragraph [39] of the Judgment's Reasoning, even though the Obligor's practice of retaining data in the log file was "not unlawful" [General Data Protection Regulation Article 83(2)(a)];
- The number of affected individuals was significant, as confirmed in paragraph [33] of the Judgment's Reasoning [General Data Protection Regulation Article 83(2)(a)];
- The infringements existed at a national level [see: paragraphs (38) and (120) of the Decision's reasoning], and were not isolated incidents as the Obligor generally mandated the mandatory verification of the age of every person intending to purchase any alcoholic beverage during the period from August 4, 2022, to August 31, 2022; this was also confirmed in paragraphs [33] and [38] of the Judgment's Reasoning [General Data Protection Regulation Article 83(2)(a)];
- The data processing operations were opaque to the data subjects for an extended period as the data processing notifications were not easily accessible and provided incomplete information to the data subjects in several respects; this was also confirmed in paragraph [32] of the Judgment's Reasoning [General Data Protection Regulation Article 83(2)(a)];
- As a result of the data processing, certain data subjects who had reached the age of eighteen were

prevented by the Obligor from exercising their right to contract (see: minutes of case number NAIH-6989-5/2022, page 6; minutes of case number NAIH-6989-6/2022, page 6); this was also confirmed in paragraph [37] of the Judgment's Reasoning [General Data Protection Regulation Article 83(2)(a)];

- The Authority, based on multiple reports received against the Obligor, perceived the likelihood of the unlawful nature of the Obligor's data processing practice, which resulted in the initiation of proceedings ex officio under case number NAIH-6989/2022; this was also confirmed in the Judgment.

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The reasoning in paragraph [34] also confirmed [General Data Protection Regulation Article 83, paragraph (2), point h].

(77) In determining the amount of the data protection fine, the following circumstances – consistent with the reasoning in paragraph (187) of the Decision – were not considered to aggravate or mitigate the amount of the fine and were neutral in effect:

- The Obligor published on its Website, after the conclusion of the evidentiary procedure, the modified data processing information that has been in effect since January 17, 2023, which fully describes the examined data processing operations and recipients; however, due to the time elapsed since the date of the infringement (August 4 - 31, 2022), it can no longer be assessed as a measure taken to mitigate the damage [General Data Protection Regulation Article 83, paragraph (2), point c];

- The Obligor, after the conclusion of the evidentiary procedure, presented the reviewed data protection documents to the regional managers in a personal training session on January 16 and 17, 2023, who were subsequently tasked with replacing all data protection documents in the stores by no later than January 31, 2023; however, due to the time elapsed since the date of the infringement (August 4 - 31, 2022), it can no longer be assessed as a mitigating circumstance [General Data Protection Regulation Article 83, paragraph (2), point c];

- The Obligor has already been found to have committed data protection violations due to breaches of the General Data Protection Regulation on two occasions; however, these violations were not considered relevant by the Authority in relation to the data processing assessed in the current data protection authority procedure [NAIH-987/2021 case number (previous case number: NAIH/2020/8690) and NAIH-1044/2021 case number (previous case number: NAIH/2020/2255) data protection investigation procedure] [General Data Protection Regulation Article 83, paragraph (2), point e];

- The Obligor cooperated with the Authority during the procedure; however, this is a legal obligation based on judicial practice and the Authority's practice, and the lack of it could be a mitigating circumstance. This was also confirmed by the reasoning of the Judgment in paragraph [36] [General Data Protection Regulation Article 83, paragraph (2), point f].

(78) In determining the amount of the data protection fine, the Authority originally considered 4 mitigating; 6 aggravating, and 4 neutral circumstances in the Decision [see: the reasoning of the Decision in paragraphs (185) – (187)]. According to paragraph [42] of the Judgment's reasoning, the Authority did not assess the prolonged duration of the infringement as an aggravating circumstance during the current repeated data protection authority procedure (which was found in the 3rd French paragraph of the reasoning of the Decision in paragraph (186) alongside other circumstances indicating that the infringements were nationwide and not isolated incidents). Paragraph [42] of the Judgment's reasoning also stated that the Authority "should not take into account the circumstances related to the retention in the log files during the assessment." In light of this, however, during the current repeated data protection authority procedure, the Authority no longer considered the circumstance evaluated in the 2nd French paragraph of the reasoning of the Decision (185) as a mitigating circumstance, based on which the Obligor stated that it applied protective measures proportional to the risks concerning the log files containing personal data [General Data Protection Regulation Article 83, paragraph (2), point d].

(79) Taking into account paragraphs [30], [31], and [42] of the Judgment's Reasoning, the Authority determined the amount of the fine in the current repeated data protection authority procedure by considering a narrower scope of the extent of the infringement; the circumstances related to the retention in the log file were not taken into account during the assessment; and the duration of the infringement established in connection with mandatory age verification (viewing, input) was not evaluated as an aggravating circumstance. However, the Authority cannot overlook that the Obligor – based on paragraph [39] of the Judgment's Reasoning, which was not disputed by them – committed multiple infringements; violated several fundamental provisions; furthermore, the number of affected individuals was significant; and the infringements existed on a national level, not being of an occasional nature.

(80) Based on the above [see: paragraphs (68) – (79) of the reasoning of this decision] and all the circumstances of the case, the Authority no longer evaluated 1 of the 6 aggravating circumstances originally considered in the Decision (the duration of the infringement) as an aggravating circumstance during the current repeated data protection authority procedure; thus – although not every infringement can be considered equally serious – the Authority decided to reduce the amount of the fine originally imposed in the Decision (95,000,000 HUF) by approximately 1/6 (15,000,000 HUF), resulting in a total data protection fine of 80,000,000 HUF. The amount of the data protection fine imposed in this decision – also considering the provisions of paragraph [42] of the Judgment's Reasoning – has become proportionally less than the fine originally imposed in the Decision.

(81) Based on the above and all the circumstances of the case, the Authority deemed the amount of the data protection fine specified in the operative part to be proportionate and deterrent in terms of both specific and general prevention, which amount remains significantly below the maximum fine; at the same time, it is proportionate to the severity of the infringements and, when compared to the revenue data for the year 2021, should not impose an unreasonable financial burden on the Obligor. This amount may be significantly different in other cases based on individual circumstances and does not bind the Authority in other matters.

(82) The Obligor paid the data protection fine of 95,000,000 HUF imposed in point 3 of the Decision to the Authority on April 26, 2023 [see: document with case number NAIH-3227-4/2023]. In light of this, the Authority will take action ex officio regarding the refund of the difference in the data protection fine to the Obligor as stated in the Decision and this current decision.

(83) Considering the period during which the infringements occurred, and that the Authority did not have to apply the European Data Protection Board's guidelines on the calculation of administrative fines under the General Data Protection Regulation (Guideline No. 04/2022) at the time of the Decision, the Authority also omits the application of the provisions contained therein during the current repeated data protection authority procedure. At the same time, the Authority notes that if the Guideline were to be applied in this case, the amount of the data protection fine would significantly exceed both the fine amount stated in the Decision and that in this current decision.

V.2. Publication of the decision

(84) According to paragraph [42] of the Judgment's Reasoning, the Authority "must again decide on the legal consequences to be applied regarding the infringements established in connection with data processing carried out by viewing and input."

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(85) According to Section 61 (2) of the Infotv.: "The Authority may order the publication of its decision – with the publication of the identifying data of the data controller and the data processor – if

- a) the decision affects a wide range of individuals,
- b) it was made in connection with the activities of a public authority, or
- c) the severity of the legal violation justifies its publication."

(86) In point 4 of the Decision, the Authority ordered ex officio the publication of its final Decision with the identification data of the Obligor on the Authority's website, as well as on the homepage of the Obligor's website, in a clearly visible and easily accessible location, within 30 days from the finalization of the Decision, and it should be available there for at least 30 days.

(87) Based on the provisions in paragraph [40] of the Reasoning of the Judgment, regarding the ordering of the publication of the final Decision – on both the Obligor's and the Authority's websites – the Metropolitan Court established that the Authority explicitly based this provision on Section 61 (2) a) of the Infotv., which was clearly stated in point 4 of the operative part of the Decision and in paragraph (194) of the reasoning of the Decision. The Authority justified the publication not by the severity of the legal violation but by the fact that the Decision affected a wide range of individuals. Considering that the Obligor ordered its criticized data processing practice in a general manner, nationwide, covering all its stores, meaning that the criticized practice was applied to every individual purchasing alcoholic beverages during the investigation period, it can undoubtedly be established that the Decision affected a wide range of individuals. For this reason alone, the Authority could order the publication of the Decision based on Section 61 (2) a) of the Infotv.

(88) Based on the above, the Metropolitan Court rejected the Obligor's claim regarding point 4 ordering the publication of the Decision based on Section 88 (1) a) of the Kp. (see: paragraph [41] of the Reasoning of the Judgment).

(89) Considering that the Obligor – as acknowledged in paragraph [39] of the Reasoning of the Judgment – committed multiple legal violations and violated several fundamental provisions, the Authority deemed the nature of the violations to be moderately severe, and this assessment was not unreasonable even though the Obligor's practice of retaining logs "was not unlawful." The number of affected individuals was significant, the legal violations were present nationwide across all of the Obligor's stores, were not of an occasional nature, and affected a wide range of natural persons.

(90) Since the decision made in the present repeated data protection authority procedure is closely related to the Decision and should be evaluated together with it, in light of the above [see: paragraphs (84) – (89) of the reasoning of this decision] – similarly to the Decision – the Authority ordered ex officio the publication of the final decision made in the present repeated data protection authority procedure with the identification data of the Obligor not only on the Authority's own website but also on the homepage of the Obligor's website, in a clearly visible and easily accessible location, for a duration of at least 30 days from the finalization of this decision.

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VI. Other Questions

(91) The Authority's jurisdiction is defined by Sections 38 (2) and (2a) of the Infotv., and its competence extends to the entire territory of the country.

(92) The Authority's current decision is based on Sections 80 – 81 of the Ákr. and Section 61 (1) of the Infotv. The decision becomes final upon its communication in accordance with Section 82 (1) of the Ákr. Pursuant to Section 112, Section 114 (1), and Section 116 (1) of the Ákr., there is a right to legal remedy against the decision through administrative litigation.

(93) The rules of administrative litigation are determined by the Kp. According to Section 12 (1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13 (3) a) aa) of the Kp., the Metropolitan Court is exclusively competent for the litigation. According to Section 27 (1) b) of the Kp., in a legal dispute where the court is exclusively competent, legal representation is mandatory. According to Section 39 (6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(94) According to Section 29 (1) of the Kp. and in consideration of this, Section 604 of Act CXXX of 2016 on Civil Procedure is applicable, and according to Section 9 (1) b) of Act CCXXII of 2015 on Electronic Administration and General Rules of Trust Services, the client's legal representative is

obliged to maintain electronic communication.

(95) The time and place for submitting the statement of claim against the Authority's decision are determined by Section 39 (1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77 (1) – (2) of the Kp. The amount of the administrative litigation fee is determined by Section 45/A (1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the proceedings is exempt from the prior payment of the fee under Section 59 (1) and Section 62 (1) h) of the Itv.

(96) If the Obligor does not properly prove the fulfillment of the prescribed obligation, the Authority considers that the obligation has not been fulfilled within the deadline. According to Section 132 of the Ákr., if the Obligor has not complied with the obligation stated in the Authority's final decision, it is enforceable. Pursuant to Section 133 (1) of the Ákr., the enforcement is ordered by the authority that made the decision, unless otherwise provided by law or government decree. According to Section 134 (1) of the Ákr., the enforcement is carried out by the state tax authority, unless otherwise provided by law, government decree, or a local government regulation in a local government authority matter. Based on Section 61 (7) of the Infotv., the Authority executes its decision concerning the obligation to perform a specified action, to behave in a specified manner, to tolerate, or to cease, as stated in the decision.

Budapest, according to the electronic signature and timestamp

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